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Journalism Policy across the Commonwealth: Partial Answers to Public Problems

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ABSTRACT

Governments and policymakers are considering intervening in the relationship between major tech companies and the news media industry and holding various inquiries and reviews to canvass reform options. This article provides a comparative study of Australia, Canada and the United Kingdom, some of the earliest countries in the world to engage in these policy processes. The study reveals that these media systems have devised similar regulatory tools and their approach aligns with a more disaggregated set of reforms occurring across Europe. While these reform agendas often draw on valuable concepts from media policy, they also awkwardly translate frameworks and introduce already questionable regulatory approaches to the platform environment. The most notable is the ongoing focus on stakeholders instead of the wider public interest. I end the paper by arguing the long-term sustainability of journalism need to be decoupled from attempts to limit platform power. I outline a more targeted regulatory response focussed on antitrust and privacy and note that journalism will receive downstream benefits from these efforts. The approach challenges the core issues associated with platform dominance and stands in contrast to current reform proposals, which threaten to hamper much needed institutional transformation across the journalism sector

KEYWORDS

Media policy; platforms; Australia; Canada; United Kingdom regulation

Governments are beginning to critically examine the relationship between platforms and the news media and have held reviews and inquiries to canvass reform options (Puppis and Winseck 2019). The central motivation for this policy activity is the concern that news media are becoming dependent on platforms for audiences, in turn contributing to the news media's ongoing economic woes. Governments are also worried about the opacity of platform algorithms and the rise in misinformation and disinformation (Bechmann 2020). Countries across the world have conducted reviews and inquiries in response (Puppis and Winseck 2019) and Australia, Canada and the United Kingdom (U.K.) have been some of the first movers in this space. The U.K. review focussed specifically on the relationship between platforms and news media (Cairncross 2019) and Canada and Australia addressed this relationship as part of

inquiries that explored a range of policy issues (Australian Competition and Consumer Commission 2019; Broadcasting & Telecommunications Panel 2020). These policy processes recently concluded, and each of these governments are currently implementing reforms.

Alongside this period of policy development, scholars have been calling for government intervention. Some are arguing that governments should actively regulate social media to ensure public interest outcomes (Napoli 2019) and others suggest that diversity requirements could potentially be imposed on platforms that use algorithmic distribution (Helberger 2020). Another preferred intervention is to accept the decline of commercial journalism and fund media directly, providing a baseline amount of news production for society (Pickard 2020a, 2020b). Victor Pickard, who advances the latter argument, claims that this approach may even better serve the democratic goals that journalism claims to support. However, many of these arguments have been made in the context of the United States, where there is limited public funding of the media (Pickard 2020a, 2020b) and no meaningful policy activity has occurred (Napoli 2020).

Considering that other jurisdictions have made considerable progress with respect to digital platform regulation, it is worthwhile assessing their initial responses. This article does so through a study of the inquiries in Australia, Canada and the United Kingdom (U.K.). Areas of relevance to digital journalism include ensuring the ongoing survival of journalism, the transparency and accountability of algorithmic processes, the commercial relationship between platforms and news media, programmatic advertising and disinformation. A comparative analysis reveals that these countries are deploying similar regulatory tools to address this issue, using government intervention to regulate platforms and also intervening in the news market. I draw on institutional theory (Scott 2014; Wang 2020) to interpret these outcomes and argue that while governments are starting to place pressure on technology companies, these reform agendas fail to seriously grapple with the decline of journalism and are not an effective way to regulate platforms.

The paper proceeds as follows; in the first section I discuss how institutional theory can help us understand the relationship between platforms and publishers and also note the growing importance of journalism policy. I then provide some basic information about the legal and regulatory context in each country, explain why a comparison between these three countries is useful and discuss the recommendations that have emerged from each inquiry or review. Lastly, a comparative analysis examines the emergence of these new regulatory approaches through a neo-institutional lens (Scott 2014) and assesses the implications of these reforms for journalism's future.

Institutions, Journalism Policy and Platform Regulation

While governments and policymakers are only just starting to focus on the institutional relationship between platforms and the news media, scholars have examined the interactions between these two sectors in some detail. The most applicable recent work draws on a strain of neo-institutionalism developed by DiMaggio and Powell (1983). These authors claim that organizations become similar as sectors form and that this is more apparent when there are power disparities between organizations.

Weaker organizations not only become dependent on more powerful organizations but end up imitating them through a process they call institutional isomorphism. Caplan and Boyd (2018) have used this concept to argue that news companies are becoming dependent on platforms and their algorithms. As a result of this dependency, they are actively working to adapt to the demands and requirements of companies like Facebook and in turn, becoming more institutionally aligned to platforms.

Their argument identifies the News Feed algorithm “as an administrative mechanism that is embedded with the values and cultural and economic environment of [Facebook]” (Caplan and Boyd 2018, 9). This allows platforms like Facebook to train the news media to follow their organizational priorities. At the time Caplan and Boyd’s (2018) paper was published, platform dependency was evident everywhere. Social media metrics were being incorporated into news workflows (Caplan and Boyd 2018), a number of social news companies were basing their distribution strategy around the vagaries of the Facebook algorithm (Meese and Hurcombe 2020) and empirical research from the Tow Centre pointed to a growing interconnection between the two institutions (Bell and Owen 2017). However, recent work has identified a more complex relationship between platforms and publishers (Wang 2020). The news media are diversifying their distribution strategies, and many have reduced their focus on social media metrics. Indeed, some companies continued to maintain a healthy split of traffic from social media and direct home page traffic (Meese and Hurcombe 2020).

There is no question that platforms are contributing to a broader institutional redefining of news media and that Silicon Valley has become more powerful than the news media (Vos and Russell 2019). Yet, recent developments suggest that a more dynamic account of this relationship is needed. Qun Wang (2020) takes important steps towards this goal by offering a model of differentiation and de-differentiation. This accounts for the cyclical blurring (de-differentiation) and separation (differentiation) that occurs between these two sectors. She provides an important warning for scholars conducting institutional analyses, arguing that studies must avoid the tendency to homogenize sectors and also acknowledge “the heterogeneity across social institutions by looking at conflicts, tensions, and struggles” (Wang 2020, 512). Keeping this notion of dynamism in mind, this article explores how governments, as institutions in their own right, have intervened in this relationship. I take an integrated approach to institutions and after outlining the reform process, go on to explore how formal rules, values and norms and mental models have shaped this particular intervention (Scott 2014). Indeed, what makes these recent reviews and inquiries so interesting is that it introduces another source of institutional power into an already contestable relationship. It is this confluence of institutional agendas and the potential for significant government intervention that makes a neo-institutional analysis so useful.

This approach also helps to establish further links between the development of journalism policy and the broader institution of journalism. Recent work has advocated for the validity of journalism policy (Pickard 2020a; 2020b; Napoli 2020) and challenged the incorrect presumption of many news media organizations that their sector has been completely free of government oversight (Pickard 2018). There is also a growing appetite for government intervention in this space as the news media sector

deals with further economic damage caused by COVID-19 and governments attempts to manage the circulation of misinformation and disinformation (Bechmann 2020). This is evident in Europe, where Germany, France and the U.K. are introducing regulations to “formalise the role of social media platforms as the governors of much of the speech that is being shared online” (Helberger 2020). In light of these current challenges and the move towards government intervention in Europe, I explore whether the reforms proposed by these Commonwealth nations mirror the European experience or, instead, represent a new wave of journalism policy.

Commonwealth Comparisons: Inquiries, Reviews and Media Systems

As noted above, Australia, Canada and the U.K. were some of the earliest countries to conduct substantive inquiries into the relationship between platforms and the media industry. The Australian Government asked the Australian Competition and Consumer Commission (ACCC) to conduct an inquiry into digital platforms in 2017. The ACCC considered the regulatory imbalance between journalism and digital platforms but also examined issues related to market power and consumer protection (Flew and Wilding 2020). This expanded scope was in line with the ACCC’s statutory role as the peak regulator of competition and consumer law. The final report was published in July 2019 (Australian Competition and Consumer Commission 2019). The U.K. was next, beginning a review into the sustainability of high-quality journalism in March 2018, which was headed by Dame Frances Cairncross. The final report was released in February 2019 (Cairncross 2019; Flew and Wilding 2020). Finally, the Canadian Government reviewed their media policy framework (consisting of the Broadcasting, Telecommunications and Radiocommunication Acts) in June 2018, a process that partially addressed the relationship between news media and platforms. The Broadcasting & Telecommunications Legislative Review Panel (BTLR) engaged in an extensive consultation process and released a report in January 2020 (Broadcasting & Telecommunications Panel 2020) (Table 1).

These reviews and inquiries form part of a complex tapestry of policy activity. Each country has examined a range of issues associated with digital platforms from online harms and safety (Department for Digital, Culture, Media and Sport, and the Home Office 2019), and disinformation (House of Commons Committee on Access to Information and Privacy and Ethics 2018; Department for Digital, Culture, Media and Sport 2019) to the future of local content (Ipsos Public Affairs 2017; Environment and Communications References Committee 2019) and public service media (Department of Communications and the Arts 2018; Select Committee on Communications and Digital 2019). Australia and Canada have also provided funding to directly support the

Table 1. Timeline of policy processes.

Country	Title	Start Date	End Date	Government Response
Australia	Digital Platforms Inquiry	December 2017	July 2019	December 2019
U.K.	Cairncross Review	March 2018	February 2019	January 2020
Canada	Broadcasting and Telecommunications Review	June 2018	January 2020	Legislation forthcoming

journalism sector (see Australian Government 2019; Zimonjic 2020). While they differ in scale and scope, it is worth comparing the Digital Platforms Inquiry, the Cairncross Review and the BTLR, as they all examine the relationship between news media and platforms and actively consider the future of news media. They are also significant policy documents that represent some of the most current thinking around the regulation of news distribution on platforms.

These three countries are also similar in terms of their existing regulatory frameworks and media systems. Hallin and Mancini (2004) locate the United Kingdom and Canada within the North Atlantic Liberal model, which also features the United States and Ireland. This model is defined by a press market with a high reach, “low degrees of political parallelism [...] professionalised journalism, and a weak role [for] the state” (Brüggemann et al. 2014, 1042), and there is a suggestion that Australia could be included as part of this model. Later research argues that the United Kingdom is markedly different from the United States and raises questions the ongoing viability of the Liberal model (Brüggemann et al. 2014; Humphreys 2012). Australian scholars have also noted that the country has a lot of commonality with the Polarized Pluralist model, in particular an embrace of clientelism, and should be treated as an “outrider amongst the Liberal group” (Jones and Pusey 2010, 457). While there are some differences amongst the countries, there are enough similarities between Australia, Canada and the U.K. and how they operate under this Liberal model, to the extent that they arguably have more in common with each other than the United States.

These commonalities become clear once relevant legal and regulatory frameworks are accounted for. The countries share a common law heritage and despite some foundational differences face similar media policy challenges (Hitchens 2006; Lobato 2019). The most critical disparity is that freedom of speech and the press forms part of the Canadian constitution (Part 54) and Bill of Rights (Part 1). Conversely, while there is a commitment to free speech in Australia and the United Kingdom, this is not based on a formal constitutional requirement. However, these differences are not wholly determining and there is a general tolerance for market intervention and regulation in each country. For example, statutory bodies impose regulatory obligations on broadcasters to varying degrees and only the press is able to independently self-regulate their activities.¹

Each country also has active public service media (PSM) organizations but the British Broadcasting Corporation (BBC) is more dominant than its Australian and Canadian counterparts (Cunningham 2015; Armstrong 2016). All three countries have also seen a collapse in commercial journalism and numerous journalists have been retrenched over the last decade (see Nielsen 2016; Ricketson et al. 2020; Cohen, Hunter, and O'Donnell 2019). However, there are also some key differences within the media markets of each country. Australia's media sector is less diverse than the United Kingdom and Canada (Noam, 2016, 1021) and is generally seen to be more concentrated than both countries (Noam 2016, 1027). This shared legal and regulatory heritage and broadly similar market context is useful as it allows us to see how aligned media systems address a similar set of challenges.

A comparative analysis also allows us to see how some of the governments to first consider platform regulation have approached the imbalances between publishers and

platforms. An analysis will show how each country constructs the problem, whether governments have used their regulatory capacity and if so, which instruments and approaches are being favoured and, how internal and external factors inform national reform trajectories. This study will also explore whether these reform proposals, which have been partially inspired by the journalism crisis, will positively impact future market conditions for commercial journalism (2018, 2020a, 2020b).

Australia: The Digital Platforms Inquiry

In late-2017, the ACCC was tasked with holding an inquiry into digital platforms. It delivered a comprehensive final report, recommending reform options across a range of areas from competition and media policy to privacy and copyright (Australian Competition and Consumer Commission 2019). The Australian Government (2019) is now implementing most of the recommendations, some of which directly intervene in the relationship between platforms and publishers and others that impact on journalism in other ways. A central reform is the establishment of a Digital Platforms Branch within the ACCC. The branch will report to government on a six-monthly basis, continue to monitor platforms and have the power to conduct inquiries and compel information for up to five years. The branch has subsequently been directed to conduct an inquiry into online advertising to examine Google's market power across the supply chain. The ACCC chair Rod Sims has also flagged that the branch will have the capacity to test "Facebook and Google algorithms to see whether there's any anti-competitive or misleading behaviour" (Australian Competition and Consumer Commission 2020).

The government also agreed that a voluntary code of conduct should be established between online platforms and news media organizations and directed the ACCC to broker one. Negotiations were slow and it gradually became clear that no "voluntary agreement would be reached with respect to the key issue of payment for content" (Barbaschow 2020). Then COVID-19 reared its head. As the virus shut down the global economy, advertisers reduced their spend causing many (already unstable) news business models to collapse. In Australia, a number of local newspapers stopped printing or closed, and major news companies laid off staff. In response to this crisis, the Australian Government told the ACCC to make the code mandatory. It will still cover similar issues, requiring platforms to share data with news media, provide "early notification of changes to the ranking or display of news content", to not "impede news media businesses' opportunities to monetise their content appropriately", and share revenue or offer compensation if "the digital platform obtains value, directly or indirectly, from content produced by news media businesses" (Australian Competition and Consumer Commission 2019, 32).

This final point is the most notable. While the prospect of revenue sharing was uncertain during initial discussions, it is now clear that the mandatory code will require platforms to remunerate publishers. Google and Facebook are also the only two platforms targeted in the initial reform. The code should also be more accurately termed as an amendment, as legislation will need to be introduced to parliament to enforce it. The draft code is currently public and stakeholders have been encouraged

to provide feedback. Facebook and Google have openly criticized the code and Facebook is threatening to no longer serve news to Australian users (Speers 2020).

Additional support from government will be given to journalism by enhancing the existing fund that supports regional and small publishers, ensuring that it supports “high quality news” in “regional and remote areas” (Australian Government 2019). A platform-neutral media regulation framework will also be introduced in stages to address the regulatory imbalance between digital platforms and traditional media (Australian Government 2019; Australian Competition and Consumer Commission 2019). The first phase of reform will aim to revise the existing classification scheme and obligations to produce local content, to ensure they are both platform neutral. However, the second phase may directly impact on news media if the government works to introduce regulatory consistency across the media sector, revising current laws, regulatory frameworks, and enforcement mechanisms (Australian Government 2019). As Flew and Wilding (2020, 14) have pointed out, while this process “marks a return to the debates about convergent media policy”, these reforms are “mostly about finding ways to regulate those who control the online environment” rather than an attempt to solve the problem of regulatory silos (even though many of those still exist today).

Canada: The Broadcasting & Telecommunications Legislative Review Panel

An expert panel was constituted in mid-2018 to review Canada’s Broadcasting and Telecommunications Acts. The government asked the panel to examine “telecommunications and content creation in the digital age, net neutrality, cultural diversity”, and to explore “how to strengthen the future of Canadian media and content creation” (Broadcasting & Telecommunications Panel 2018a). Responses to the call for comments (Broadcasting & Telecommunications Panel 2018b) were eventually distilled into a final report that proposes significant reforms (Broadcasting & Telecommunications Panel 2020). It recommends the removal of barriers between different forms of communication. This involves subsuming both pieces of legislation under a general Communications Act and changing the name of the Canadian Radio-television and Telecommunications Commission (CRTC) to the Canadian Communications Commission.

As part of this process, the panel wants to subject media content production and activities to the requirements of the Broadcasting Act. They would extend to undertakers (i.e. providers) that have editorial control, aggregate content or simply provide a platform where the content of others is shared. To provide some examples, these definitions would encompass traditional publishers and broadcasters of content (editorial control), subscription video on demand services (aggregators), and social media platforms and search engines (sharers). All parties subject to this proposal will have their media content regulated, which includes audio, audiovisual content, and, most critically, news. This is a notable redefinition as it incorporates a traditionally (and deliberately) under-regulated content area in news, along with digital platforms, into a new regulatory regime. Correspondingly, a clear intent to regulate platforms is made

clear by the recommendation that legislation should apply “to undertakings carried on in part within Canada, whether or not they have a place of business in Canada” (Broadcasting & Telecommunications Panel 2020), effectively capturing the activities of transnational platforms.

The proposed new structure is linked to the ongoing support of Canadian news media through a further intervention. The panel suggests that the CTRC should use regulation, licence or registration conditions to impose spending requirements, levies, discoverability requirements and manage disputes and economic arguments between undertakings and content producers. These powers would apply to all undertakings except for those that disseminate news while retaining editorial control (i.e. print or online news). The levy system therefore partially seeks to sustain national news production. The BLTR suggests that funds collected through levies could be “directed to an independent, arm’s length CRTC-approved fund for the production of news, including local news” (Broadcasting & Telecommunications Panel 2020). In addition to collecting funds from new actors like online platforms, the BTLR also suggests redirecting a greater proportion of the broadcasting levy (otherwise known as the Broadcasting Distribution Undertaking) to news. This support for Canadian news media is further entrenched through the imposition of the aforementioned discoverability requirements. The review panel argues that the CTRC should require platforms and news aggregators to ensure visibility and access to diverse range of “accurate, trusted, and reliable” Canadian news content” (Broadcasting & Telecommunications Panel 2020).

The BTLR panel recommends that the CTRC should be “should be given the explicit jurisdiction to regulate the economic relationships between media content undertakings and content producers, including terms of trade” (Broadcasting & Telecommunications Panel 2020). A latter recommendation to encourage co-regulatory or self-regulatory arrangements across the CTRC strongly implies that any proposed code would most likely follow one of these regulatory structures (with CTRC oversight). The BTLR panel also suggests that additional codes could address “privacy, transparency regarding algorithms and AI-based processes, accessibility, and measures to address complaints by users” (Broadcasting & Telecommunications Panel 2020). Algorithmic accountability is also evident in the recommendation that platforms be required to provide reports to the CTRC on “financial information, consumption data, and technological processes such as algorithms” (Broadcasting & Telecommunications Panel 2020). Steven Guilbeault (the minister responsible) has said the government will not seek to register news services with the CRTC (McLeod 2020). He has also shared his Government’s initial response to the BTLR agenda, explaining that he will work to introduce legislation that focuses on getting platforms to pay for news and support Canadian content (Langenberg 2020).

The United Kingdom: The Cairncross Review

The Cairncross Review focussed on how technological change was affecting the production and distribution of high-quality journalism. The first recommendation was a code of conduct for platforms and publishers. This would involve platforms outlining

what individual publishers can expect from them during a negotiation, which may include “a pledge to share some information with a publisher on its readers’ behaviour; or a commitment to give appropriate notice for significant changes to algorithms that may impact on the prominence of a publisher’s content” (Cairncross 2019, 74). The report also suggested that additional obligations should be imposed on platforms with respect to news quality, by empowering a regulator to “gather information” about “the steps that platforms [were] taking” to inform readers about the “origins and quality” of news (Cairncross 2019, 10).

In addition to these platform-focussed reforms, the review also suggested that the Competition and Market Authority (CMA) should conduct a substantive investigation into the online advertising market. Further recommendations involved various levels of government intervention. These included the introduction of a news innovation fund, and the provision of tax relief by exempting online news subscriptions from tax and allowing publishers who are engaged in public interest journalism to be recognized as “charitable endeavour[s]” (Cairncross 2019, 87). The BBC was also enrolled into these efforts, with recommendations calling on OFCOM (the peak media regulator) to examine the market impact of the BBC and for the BBC to directly assist local publishers. Suggestions included inviting local publishers onto BBC projects focussed on improving “the tagging of its content” (Cairncross 2019, 97) and expanding the Local Democracy Reporting Scheme (LDRS), funded by the BBC, by encouraging other funders (such as Facebook) to ensure “a minimal provision of local public-interest news across the country” (Cairncross 2019). The public interest was also explicitly acknowledged through the final recommendation that an Institute for Public Interest News be established.

In the interim period before the government responded, the statutory bodies addressed in the review responded. The CMA published an interim report on digital advertising and found that “potential rivals can no longer compete on equal terms” with Google and Facebook (Competitions and Market Authority 2019, 6). OFCOM. (2019) conducted a review of BBC news and current affairs and stated that the organization could better diversify its representation of British society and link to more third-party sources online. The government response followed this period of further policy development and they accepted most of the Cairncross Review’s recommendations. They welcomed the proposed code of conduct and noted that it may be combined with the CMA’s code for digital advertising or with the Digital Competition Expert Panel’s suggestion of a general code “to govern platforms’ conduct towards some businesses” (Department for Digital, Culture, and Media and Sport 2020, 12). However, the recommendation to ensure that platforms provide information about news quality was passed on to the Online Harms White Paper (2019) with the government suggesting that this proposal could be incorporated into a broader regulatory framework “tackling harmful online content” (Department for Digital, Culture, and Media and Sport 2020, 23).

The government also embraced some requests for further assistance but prevaricated on others. It established a pilot £2 million innovation fund with Nesta (an independent innovation organization) and expressed general support for the LDRS, noting that the BBC was due to conduct a review in 2020. However, they did not agree with recommendations to provide tax relief, stating that they were “considering the merits

and risks associated with extending the zero rate” (Department for Digital, Culture, and Media and Sport 2020, 40) and noting that existing definitions of charitable institutions allowed appropriate journalist organizations to be registered. The proposal for an Institute of Public Interest News was also rejected.

From Competition to Cultural Protectionism: Similar Instruments, Divergent Approaches

At first glance, the above inquiries and reviews appear to manage the relationship between news media and platforms in similar ways. All of the countries are considering (U.K.; Canada) or introducing (Australia) a code of conduct or enabling legislation, imposing measures that establish some level of algorithmic transparency, addressing disinformation, supporting journalism through the direct funding of commercial outlets and the ongoing funding of public service media. This points to an analogous regulatory approach emerging across the Commonwealth. However, each national response is also shaped by specific political and economic contexts and longer policy trajectories, which means that some important differences are also apparent.

News Levies and Algorithmic Accountability

Each country recommended the introduction of a regulatory framework to manage the relationship between platforms and publishers, with the agreement overseen by a statutory body. Most notably, Australia is introducing a law to transfer revenue from platforms to publishers. Canada is watching the progress of this reform with interest (Morgan 2020). This trend suggests that governments are aiming to impose substantive regulatory burdens on platforms, at least with respect to their economic relationship with news media. Australia’s code also requires platforms to share relevant marketing data with publishers and notify them about algorithm changes. The proposed U.K. and Canadian codes could cover a similar array of issues, with the BTLR noting that codes of conduct could be introduced to enforce algorithmic transparency and accountability (Broadcasting & Telecommunications Panel 2020). More interestingly, the BTLR calls on platforms and news aggregators to promote Canadian news. While many other countries have focussed on ensuring that national film and television content is discoverable, this recommendation highlights the importance of citizens also being able to access relevant national and local news.

Public Service Media

Divergent perspectives on the wider media environment and platform regulation were more apparent in the treatment of public service media. Once again, each policy process was similar at a broad level, with reviews and inquiries calling on governments to keep supporting public service media and in the case of Canada and Australia, to also provide more certainty around funding. However, this surface level agreement obscured the fact that each country treated public service media in slightly different ways. The most obvious example is that of the U.K where the British Broadcasting

Corporation is still a dominant player in the national media market (Cunningham 2015). The Cairncross Review and the government recognized this and devised policies that drew on BBC's resources and skills to support commercial journalism, in turn revealing the real ability of public service media to function as democratic infrastructure (Pickard 2020a).

In contrast, Australia's smaller public service media organizations were treated differently. As befits their statutory role, the ACCC viewed the Australian Broadcasting Corporation and the Special Broadcasting Service through an economic perspective, focussing on how their operations impacted the market. The report noted that these organizations could not adequately address market failure due to their lack of funding. For example, the ABC and SBS were "not currently resourced to fully compensate for the decline in local reporting previously produced by traditional commercial publishers" (Australian Competition and Consumer Commission 2019, 19). However, they challenged the idea that public service media could be simply be expected to solve the journalism crisis, noting that "a wider range of news sources should also be active in the provision of all categories of journalism" (Australian Competition and Consumer Commission 2019, 19).

The Australian government's reaction to the ACCC recommendation stood as a further point of difference. It did not take this recommendation as a launching point to provide more funding to ABC and SBS or think about whether publicly funded news could function as a productive substitute for commercial journalism (Pickard 2020a, 2020b). To provide some context, successive governments have been critical of the ABC and there has been a bipartisan effort to cut the ABC's budget, which has seen funding decline significantly (Australian Broadcasting Corporation 2018, 19). This lack of engagement with public service media continued throughout the reform process. ABC and SBS have both been excluded from the draft of the mandatory code at time of writing. This means that platforms will not have to pay them for the use of their news. This context along with the fact that Australian PSM organizations do not retain a dominant market position helps to explain why the ABC and SBS are not being mobilized to support commercial journalism.

A further point of difference emerged in Canada's response. The country has a long history of cultural protectionism and this tendency came through the BTLR review (Hunt and McKelvey 2019). The report noted that Canadians should be "able to see and hear a Canadian perspective on international events" and called for the provision of this content "to be explicitly added to the mandate of CBC/Radio-Canada" (Broadcasting & Telecommunications Panel 2020). The use of PSM as a mechanism to support nationhood amidst a complex media environment was a central part of the Canadian response, one not evident in Australian or British responses.

Government Funding for Journalism

As already noted, all three countries have also sought to provide some level of direct support to commercial news. Australia and Canada already had funds focussed on helping commercial journalism. Canada's support mechanisms include a periodical fund for non-daily newspapers and magazines (Canadian Heritage 2020a), a local

journalism initiative (Canadian Heritage 2020b) and a news media support fund (Zimonjic 2020). Australia's fund focuses on helping small and regional media organizations adapt to a changing media environment. Both countries have also committed to providing additional support for the sector following COVID-19 (Grattan 2020; Rusnell 2020). However, the most critical development is that the Cairncross Review took note of their Commonwealth counterparts and called for a similar fund. This recommendation was accepted by government and one launched in 2019 (Mocker 2019). The adoption of similar mechanisms is evidence of clear policy coherence around this issue, with only minor differences apparent. As would be expected, due to their geographic size, Australia and Canada have a greater focus on serving local communities where commercial news organizations may be struggling or not viable at all. Conversely, the U.K. fund turns to innovation to solve the structural crisis in journalism.

Disinformation

All of the reviews addressed misinformation and disinformation by focussing on the issue of news quality. The Australian government specifically addressed the issue and asked platforms to work with the media regulator (ACMA) to “develop a voluntary code (or codes) of conduct” that will “outline what the platforms will do to tackle disinformation on their services and support the ability of Australians to discern the quality of news and information” (Australian Government 2019, 7). The Cairncross Review made a similar recommendation, calling for “regulatory supervision” over platform efforts to improve news quality (Cairncross 2019, 90). In contrast, the BTLR report called for the introduction of specific legislation over and above reforms undertaken in the communications sector to address “harmful content and conduct using digital technologies”, which incorporated misinformation and disinformation (Broadcasting & Telecommunications Panel 2020). While Canada's legislative route suggests a more rigorous approach, there is a lot of adjacent policymaking occurring around disinformation in the U.K. and Australia particularly in the national security space (Department for Digital, Culture, Media and Sport 2019). The most useful outcome for journalism policy is that “news quality” has been identified by all jurisdictions as a meaningful regulatory concept.

Online Advertising

The U.K. and Australia are also focussing on Google and Facebook's dominance of online advertising, with the ACCC noting that “Google is the only company that offers ad tech services across the entire ad tech supply chain” (Australian Competition and Consumer Commission 2019 128). As a result, platforms can potentially use their integrated services to favour their own businesses and collect information on competitors. This policy space is of relevance to digital news because statutory bodies and governments are increasingly viewing online advertising as a critical space, where algorithmic transparency and accountability may be necessary (Competitions and Market Authority 2019; Australian Competition and Consumer Commission 2019). Not only would this

additional transparency be of value to news companies themselves, but any substantial interventions from regulators may alter the current status quo, which sees Google and Facebook dominate search and display advertising.

A Qualified Response to Platform Power

This period of reform has contributed to broader policy coherence. Canada, Australia and the United Kingdom are coming to some level of agreement around how to manage the relationship between news media and platforms. Instruments and approaches include:

- Codes of conduct (or legislative amendments) to enforce algorithmic accountability and revenue sharing models;
- Codes of conduct (or legislative amendments) to formalize platform responses to disinformation;
- Grants that address market failure or support innovation in the journalism sector;
- Further investigations into critical policy areas like programmatic advertising and disinformation.

Indeed, the strong presence of government support (and in some cases intervention) shows that policymakers and governments are starting to accept the argument that there is an effective market failure in commercial journalism and that alternatives need to be found (Pickard 2020a, 2020b).

Each reform process also has its own unique elements as in Table 2. The BTLR has proposed foundational changes to the regulatory landscape, whereas the Australian and the U.K. inquiries offered more iterative reform agendas. However, this has not stopped Australia from acting on the recommendations and Canada is also considering significant interventions. In contrast, the U.K. is taking a more cautious approach. It is also worth noting that while many of the proposed reforms are very similar, each country adopts a different regulatory lens. The Australian reforms are primarily being developed through the lens of competition law (or antitrust) whereas Canada is focussed on cultural protectionism. This means that the Cairncross review was the only policy process to predominately operate in the journalism policy space.

Table 2. Comparison of reform agendas.

	Policy areas	Central approach	Government intervention	Reform process
Australia	News media Local content Competition (Antitrust) Privacy	Competition (Antitrust).	High	Iterative
Canada	News media Local content Privacy Media Access	Cultural Protectionism	High	Foundational
United Kingdom	News media	News media	Mixed (but potential for High)	Iterative

Neo-institutionalism helps to further contextualize these developments (Scott 2014). At a general level, these inquiries aim to formalize the institutional relationship between platforms and publishers and recognize that their interactions constitute a meaningful policy problem in the form of a power imbalance. The introduction of regulation in some jurisdictions also suggests that governments are willing to support journalism as it grapples with platform power (Caplan and Boyd 2018; Wang 2020). The fact that these governments have picked a side is the most critical outcome from these reforms. They have clearly identified platforms as disruptive actors that need to be coerced into new patterns of corporate behaviour. This locates platforms as regulatable entities and moves the regulatory conversation beyond the platform/publisher debate that framed the 2010s (Napoli and Caplan 2017). However, it also suggests that Governments view the relationship between platforms and publishers as settled rather than a dynamic space of contestation (Wang 2020).

These reforms have also emerged out of stakeholder consultation and so are necessarily imperfect (Flew et al. 2019). I have noted elsewhere that the Australian mandatory code can be viewed as a “a workable framework that allows the equitable conduct of ongoing business between two sectors” (Meese and Hurcombe 2020). However, the fact that certain frameworks may be “workable” does not mean that these broader regulatory trajectories are normatively sound. The first problem is that governments are choosing the wrong way to respond to the economic crisis in journalism. There is a growing consensus that the best policy intervention involves requisitioning money from platforms through levies or other mechanisms, which causes more problems than it solves. This is better than the current situation, where platforms independently decide how and when to fund journalism projects through independent grants and secure licencing agreements with selected publishers (Porter 2020). Bargaining codes, like the one proposed in Australia, do provide some transparency to an otherwise captive and unequal negotiation process (Meese and Hurcombe 2020). However, these mechanisms also make platforms more or less responsible for the market failure of news. It is notable that many democratic nations have ignored the opportunity to secure critical democratic infrastructure through public service media (Helberger 2020; Pickard 2020a) and are instead regulating the private market from afar.

This takes us to the second problem. Namely, that decisions are driven by reductive values, norms and mental models of what journalism is and how it operates. Governments view journalism through a *cultural-cognitive* lens, which associates institutions with certain practices and ways of working (Scott 2014). It is understandable when one considers that the news industry tends to maintain conventional institutional relationships with politicians and policymakers. However, it also means that policymakers are largely focussed on securing existing legacy media and are not seriously viewing this moment as a chance to reimagine journalism (Deuze and Witschge 2018). Levies contribute to an ongoing institutional stagnation and do not resolve the fundamental problems associated with the commercial news business. As the above analysis makes clear, grants to support innovation are limited, and there are variable commitments to funding public service media. There has also been little attempt to encourage news media to change longstanding practices and business models.

The third problem is that the focus on journalism limits the broader goals of digital platform regulation. Many of the proposed Australian reforms, from algorithmic transparency to data sharing, focus on the news sector and do not work towards a broader public approach. As a result, while there are clearly public interest issues associated with the online distribution of news, current regulatory approaches ensure that they will mainly be viewed through a commercial lens. This fits in with a conventional understanding of journalism that locates the institution as a stand-in for the wider public but ultimately sees genuine public interest concerns ignored in favour of commercial outcomes. This will be particularly noticeable in countries that do not have a dominant PSM organization, as any gains secured through regulation will largely be of benefit to corporate actors. In a similar fashion, the proposed Canadian reforms focus on survival of the Canadian cultural industries rather than more general public interest harms associated with platforms.

These problems have emerged as a result of the patchy translation of “established regulatory models” (Napoli 2019, 150). While the Australian reforms will involve amendments to legislation and the active involvement of the ACCC, the Canadian and U.K. reforms rely on codes of conduct. These are common policy instruments in the media sector and have a legacy of being poorly enforced. It is also important to note that Australia’s mandatory code is still oriented around commercial relationships mimicking codes developed by the ACCC to regulate other sectors. This underlines the longstanding influence of commercial actors in media policy and shows how they have worked to re-establish their power in a changing regulatory environment.

The broad regulatory approach identified above is also common in the European Union (E.U.). The E.U. and its member states are working to improve discoverability, enforce algorithmic pluralism and address hate speech (Helberger 2020). There is also an ongoing effort to get platforms to pay for news content through a series of copyright law reforms (Furgal 2018). This has seen France’s competition authority force Google to negotiate with publishers and pay them for the use of their content (Lomas 2020). While these reforms are often disaggregated across various the European member states, we can still identify an emerging regulatory status quo across the board. Governments are seeking to civilize platform power and algorithmic distribution and “infuse some public value standards into corporations” (Helberger 2020, 7).

Helberger (2020, 849) critiques this regulatory approach that sees policymakers accept “that the Internet is now governed by certain platforms”. She also notes that the focus on competition law fails to address the ability of platforms to shape opinion. I am inclined to agree and a brief consideration of the potential outcomes from the debates around news payments in Australia bears this critique out. One potential outcome from these reforms is that platforms will stop serving news content to particular countries (indeed the option has already been raised in Australia [Blackiston 2020]). Social networking and search operations will keep running and bringing in advertising revenue, and broader social harms associated with algorithmic distribution will continue. Alternatively, even if platforms acquiesce to these conditions, the reliance on competition law will see that these important public issues are largely viewed as a dispute between two private sectors.

Digital Platform Regulation and Policy Futures for Journalism

So, if this growing regulatory consensus is no longer appropriate, what should platform regulation look like? Helberger (2020, 850) calls for the creation of counter powers, greater transparency (especially around political advertising), removing algorithmic control from companies and “separation of social infrastructure from the distribution of content”. This article offers additional suggestions in support of this broader goal. The first recommendation is that that normative policy concepts must be developed outside the context of established commercial interests, regardless of whether they are platforms or publishers. The Australian example shows that even well-meaning attempts to respond to the news media crisis end up having to negotiate with powerful interests. This does not lead to well-targeted reform or publicly oriented outcomes. It suggests that further conceptual work needs to be done to ensure that public interest outcomes are at the core of future policy reform efforts (Helberger 2020; Napoli 2019). Mike Ananny’s (2018) rethinking of press freedom and Helberger’s work on opinion power (2020) are salutary early contributions to this project.

This leads on to the second recommendation. It is questionable whether journalism policy is the best place from which to launch this challenge to platform power. Platforms are reliant on advertising for income, not traffic from news media and are better understood as a replacement for the newspaper as the central actor in a multi-sided market of advertisers and consumers. They are also entitled to push back against regulation that forces them to partially accept economic responsibility for a multifaceted phenomenon like the decline of journalism. It is harder for platforms to argue against the broad social harms associated with algorithmic distribution (to provide one example), which affects a number of commercial sectors and the wider public. However, these wider public interest concerns are best located in alternative regulatory spaces, like competition law (antitrust) and privacy.

Competition law scholars have shown that these two areas work in tandem with one another and form the very basis of platform power (Hoofnagle and Whittington 2013). The widespread collection of personal data contributes to improved product offerings, and a case can be made “that control of the largest share of customer data could contribute to market dominance” (Shelanski 2013). As a result, reforms that target the widespread collection of personal data should form one arm of a rigorous regulatory response. Interventions that address core competition law (antitrust) concerns stand as the other. The growing threat of antitrust actions in the United States could see platforms broken up (Sonnemaker 2020), and the ACCC’s inquiry into the digital advertising supply chain will make a meaningful contribution to securing a fair online advertising market. These two areas of law target the very foundation of platform economies and, along with the development of rigorous counter powers discussed above (Helberger 2020), stand as the best way to challenge platformisation.

This reoriented regulatory approach places the future of the news sector outside the broader conversation around platform regulation (see Figure 1). It also directly rejects attempts to extend competition law concerns to the platform/publisher relationship (as seen in Australia). However, this new approach still assists journalism

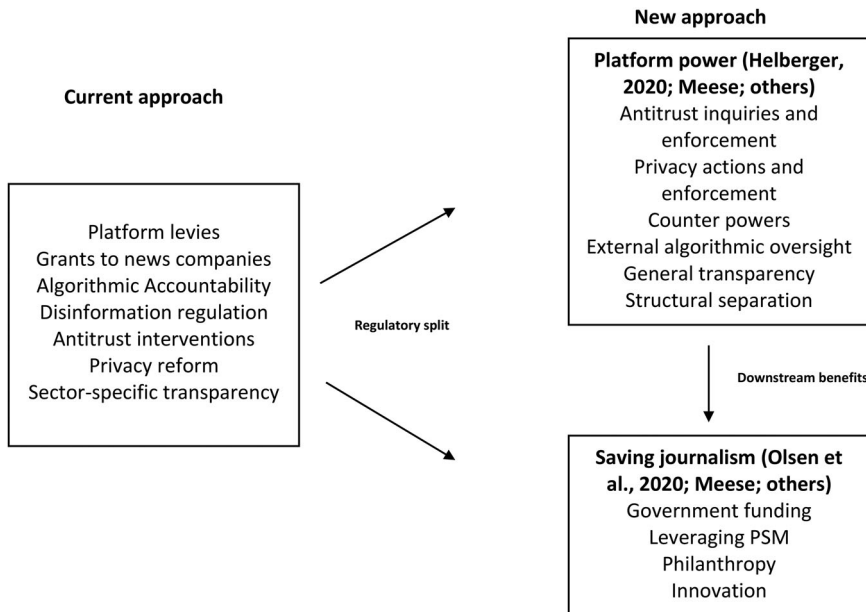


Figure 1. An alternative regulatory approach.

because any significant regulatory achievements will have important downstream benefits. For example, lessening Google’s dominance over the advertising stack will assist advertising-based news businesses. It will also ensure that journalism can be addressed on its own terms. This differs from the current regulatory approach which does not seriously engage with the journalism crisis but instead aims to secure what is left of legacy media, often by transplanting weak regulatory structures from older media policy frameworks.

Olsen, Pickard, and Westlund (2020) argue that the real challenge is to get governments, advertisers and audiences to expand their understanding of journalism’s value and actively work together to secure a new future for the sector (Olsen, Pickard, and Westlund 2020; Pickard 2020a, 2020b). This involves a broader role for government, a smaller role for platforms, a generous advertising sector and requires the institution of journalism to innovate and expand its revenue streams. The approach would require significant economic support from government. The regulatory split I propose in this article, which combines and extends previous work (Helberger 2020; Olsen, Pickard, and Westlund 2020), makes this reality more feasible. However, there appears to be a growing consensus amongst governments, which sees them incorporating the journalism crisis into the broader platform regulation efforts while simultaneously refusing to provide significant financial assistance to the sector.

Note

1. The three statutory bodies are the Canadian Radio-television and Telecommunications Commission (CRTC), the Office of Communications (OFCOM) and the Australian Communications and Media Authority (ACMA).

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